

HOUSE No. 1351**The Commonwealth of Massachusetts**

PRESENTED BY:

Christine P. Barber

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring equal access to medical treatments essential for people with a developmental disability, intellectual disability, or autism.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>1/14/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>2/21/2025</i>
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>2/11/2025</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>3/2/2026</i>
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>4/11/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/8/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/26/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>3/31/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>3/14/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>4/11/2025</i>
<i>William C. Galvin</i>	<i>6th Norfolk</i>	<i>2/25/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>3/7/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/10/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>2/15/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/11/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>2/10/2025</i>

<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/8/2025</i>
<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>2/25/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/14/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/31/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>3/4/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>2/10/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>2/5/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>2/13/2025</i>
<i>Edward R. Philips</i>	<i>8th Norfolk</i>	<i>4/8/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/6/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/13/2025</i>
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>3/19/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>3/4/2025</i>
<i>Steven Ultrino</i>	<i>33rd Middlesex</i>	<i>3/6/2025</i>
<i>Erika Uytterhoeven</i>	<i>27th Middlesex</i>	<i>2/19/2025</i>
<i>David T. Vieira</i>	<i>3rd Barnstable</i>	<i>5/16/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>2/7/2025</i>
<i>Bud L. Williams</i>	<i>11th Hampden</i>	<i>2/11/2025</i>

HOUSE No. 1351

By Representative Barber of Somerville, a petition (accompanied by bill, House, No. 1351) of Christine P. Barber and others relative to ensuring equal access to medical treatments essential for people with a developmental disability, intellectual disability, or autism. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 128 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring equal access to medical treatments essential for people with a developmental disability, intellectual disability, or autism.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 118E of General Laws, as appearing in the 2018 Official Edition is hereby
2 amended by inserting after section 62 the following section:-

3 Section 63. The Division shall cover the cost of habilitative and rehabilitative medically
4 necessary treatments for individuals aged 21 and older who are receiving coverage under this
5 chapter and who have been diagnosed with any of the following disorders as defined in the most
6 recent version of the Diagnostic and Statistical Manual of Mental Disorders (DSM):
7 developmental disability, an intellectual disability, or autism spectrum disorder. The diagnoses
8 must be made by a licensed physician or a licensed psychologist who determines the care to be
9 medically necessary. Treatments shall include, but shall not be limited to, applied behavior

10 analysis provided or supervised by a licensed behavior analyst that is necessary to develop,
11 maintain or restore, to the maximum extent practicable, the functioning of an individual. In
12 addition, the Division shall cover the cost of both dedicated and non-dedicated augmentative and
13 alternative communication devices, including, but not limited to, medically necessary tablets.